

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW PIGORS

Plaintiff,

VS.

EMILY WATSON

Defendant.

FILE NO. **2024-001507-DC**

RECOMMENDATION AND ORDER
DISMISSING PARENTING TIME MOTION

HON. JENNY L. MCNEILL

Self-Represented Litigant
Attorney for Plaintiff

Jennifer Barnes
Attorney for Defendant

The Muskegon County Family Court conducted a review and investigation and recommends entry of the following Order. If you disagree with this recommendation, you must file written Objection by completing the Objection to Recommendation and Order regarding Parenting Time form and file it on or before **21 Days** from the date this recommended order is mailed and/or emailed. If you do not object, this proposed order will be presented to the court for signature and entry.

This matter was brought before Brandy Klapatch, Family Court Specialist for the Muskegon County Family Court Services; said Specialist having reviewed the Case File; hereby requests the entry of the proposed Order set forth below:

THE FAMILY COURT SPECIALIST FINDS the Case History to be extremely relevant and beneficial regarding Motion filings. A Summarized Case History is attached to this Order.

THE FAMILY COURT SPECIALIST FINDS:

1. On February 14, 2025 Plaintiff/Father filed a Motion regarding Parenting Time.

Page One of the motion included the following:

Plaintiff reported a Judgment was entered on 8/23/24. (C 1. a. of form)

Plaintiff reported the Defendant denied him parenting time and made changes without Court order as follows: (D 3. a. and c. of form).

It is Noted no specific changes were provided on the form.

Plaintiff reported it to be in the best interest of the child to change parenting time (F 5. of form)

Plaintiff requested the Court to Order parenting time be changed (G 6. of form).

Attached to the Motion was 16 additional pages.

Page Two was titled as follows:

“AFFIDAVIT IN SUPPORT OF MOTION TO MODIFY CUSTODY AND PARENTING TIME” stating “Plaintiff seeks an order restoring a 50/50 joint legal and physical custody arrangement, as mandated by the best interests of the child standard under MCL 722.23. This request is based on significant changes in circumstances, including parental alienation, legal manipulations, financial fraud, and violations of Michigan law committed by Defendant, EMILY WATSON”.

2. The Family Court Specialist found only one Order entered in this Case regarding Custody and Parenting Time. That Order was a Final Judgment entered on August 23, 2024 granting Sole Legal and Sole Physical Custody to Defendant/Mother and granted specific Parenting Time to Plaintiff/Father. The Ex Parte Order following Facilitative Information Gathering Conference was Objected, the Objection was Granted and the Order was Dismissed. Plaintiff/Father was not granted Joint Legal Custody or 50/50 Parenting Time by this Court. Plaintiff’s request to restore 50/50 joint legal and physical custody arrangement shall be denied.

Pages Three, Four and Five addressed/argued the Best Interest Factors (again).

Plaintiff broke it down into three categories:

“Violation by Defendant”, “Impact on Lincoln” and “Plaintiff’s Parental Excellence” in favor of his request for modifications.

3. The Family Court Specialist reviewed the information provided by the Plaintiff/Father in regards to his Parental Excellence. The Father’s circumstances have not changed. What he reports to be his circumstances/capabilities remain the same as he previously reported to this Court during the proceedings/Trial to finalize the issues of Custody, Parenting Time and Child Support. The Plaintiff/Father has failed to provide significant changes in circumstances to warrant a Review of Parenting Time. Furthermore, the Father’s request to modify Custody can not be addressed via filing a Motion regarding Parenting Time.

Page Six was titled as follows:

“TIMELINE RECONSTRUCTION OF MISCONDUCT”.

The Timeline begins with May 15, 2023 (already heard by this Court), continues through year 2024 (also previously heard by this Court) and provided the following allegations regarding Defendant/Mother for 2025:

1/2/25: Obstructed access to Lincoln’s medical records.

4. The Family Court Specialist finds Defendant is granted Sole Legal Custody.

1/15/25: Refused request to take child to dinner.

5. The Family Court Specialist finds the date to be a Wednesday and was Defendant/Mother's Parenting Time.

1/16/25: Denied request to see child.

6. The Family Court Specialist finds the date to be a Thursday and was Defendant/Mother's Parenting Time.

1/22/25: Refused request for an extra day with child despite having time off work.

7. The Family Court Specialist finds the date to be a Wednesday and was Defendant/Mother's Parenting Time.

1/24/25: Failed to explain visible injury on child's head, initially blaming him.

1/28/25: Received delayed notification regarding child's past medical visit providing no additional information.

1/30/25: Denied request to see child outside of court ordered parenting time.

8. The Court Order does allow for additional parenting times as mutually agreed between parties. Parties are encouraged to support the child's participation in special occasions or events (weddings, family reunions, etc) which may be scheduled outside of regular parenting times. Parties are not required to agree to additional parenting times. It is in the best interest of the child for parties to keep one another informed of any injuries sustained by the child, to include any injuries not requiring medical treatment. Parties are Ordered to communicate via AppClose therefore parties have a means to convey this information including medical appointments. Scheduled appointments can be conveyed via the Text Message feature of the app and the Shared Calendar feature.

2/5/25: Refused early pick up request despite a court-permitted exchange.

9. The Family Court Specialist finds parenting time was granted with specific days and times for exchanges. Parties are not required to accommodate requests for early pick-ups as it interferes with their parenting time.

2/7/25: Refused to disclose child's childcare arrangements.

10. Appropriate Childcare arrangements are the responsibility of each parent during their respective parenting times. Parties are encouraged to keep one another informed regarding childcare providers and school enrollment so each may assist with the child's educational performance.

Plaintiff/Father indicated an Evidence List was "available upon Court request" for the following allegations:

- Daycare Attendance Records were manipulated.
- Medical Neglect and Withholding of Records.
- False Allegations & PPO Misuse.
- Threats, Hostile Exchanges & Judicial Bias.
- Financial Manipulation & Fraud Evidence.

11. The Family Court Specialist found these matters were previously litigated by this Court at the Trial held on July 17, 2024 and are not Changes in Circumstances since entry of the last Order entered on August 23, 2024.

In Conclusion Plaintiff stated the following:

"having meticulously compiled and presented an exhaustive evidentiary record, asserts that the weight of the evidence overwhelmingly substantiates claims of **custodial interference, parental alienation, medical neglect, judicial bias, financial fraud, and falsified legal claims**. The totality of these transgressions not only undermines the fundamental principles of family law but also inflicts **irreparable harm** upon the minor child (name), warranting immediate judicial intervention and corrective actions".

"The record irrefutably demonstrates Defendant's deliberate, systemic, and continuous obstruction of Plaintiff's parental rights, in direct contravention of established Michigan law, including but not limited to:" (on next page references MCL 722.23, MCL 722.27, MCL 722.30, MCR 3.211 and MCR 2.612).

Plaintiff then proceeded to "respectfully petition the Court for the following relief:"

1. Immediate modification of Custody and Parenting Time.
2. Judicial Enforcement of all parenting time orders.
3. A court-ordered forensic review.
4. An evidentiary hearing to address procedural violations.
5. Legal sanctions and contempt proceedings against Defendant.
6. An expedited hearing on this motion.

Also attached to the Motion was a prepared Proposed Custody and Parenting Time Order for Joint Legal Custody, Week On/Week Off parenting time and for Child Support to be recalculated.

12. The Family Court Specialist having reviewed the Case File in its entirety, having Summarized the Case File, having found No requests for Parenting Time Assistance filed reporting specific violations to the Court Order and having reviewed the Motion filed by the Plaintiff/Father on February 14, 2025 recommends the Plaintiff/Father's Motion be Dismissed for failure to provide sufficient changes in circumstances since entry of the Order (8/23/24) and for having filed an improper Motion based upon his petition for relief. Parenting Time shall remain pursuant to the Judgment entered on August 23, 2024.

ORDER REGARDING PARENTING TIME MOTION

IT IS HEREBY THE RECOMMENDATION AND ORDER that the Plaintiff Father, ANDREW PIGORS's Motion regarding Parenting Time filed on February 14, 2025 is Dismissed for the reasons stated above. Parenting Time shall remain pursuant to the Order entered on August 23, 2024.

The residence of the minor child shall not be removed from the State of Michigan without the prior approval of the Court; and the custodial parent shall keep the Muskegon County Family Court Services fully informed of the current address of the child.

A parent whose custody or parenting time of a child is governed by this order shall not change the legal residence of the child except in compliance with Section 11 of the "Child Custody Act of 1970", 1970 PA 91, MCL 722.31.

Except otherwise provided in this Order, neither parent shall exercise parenting time in a foreign country/nation that is not a party to the Hague Convention on the Civil Aspects of International Child Abduction.

INHERENT RIGHT

The minor child of the parties has the inherent right to the natural affections and love of both parents and neither party shall do anything which may estrange the minor child from the other party, or tend to discredit, cause disrespect, or diminish the natural affections of the minor child for the other party.

CONTINUATION OF PRIOR ORDERS

Prior Orders not specifically or by implication modified in this Order are preserved and remain in effect.

NOTICE REQUIREMENTS

Each party shall immediately notify the Office of Family Court Services, in writing, of any changes in their mailing address, residence address, email address and name including address of current source of income. Each party shall also keep Family Court Services informed of any health care coverage available to them; the name of the insurance company, health care organization, or health maintenance organization; the policy certificate or contract number; and the names and birth dates of the persons who are covered.

Recommended and Prepared by:



03/26/2025
02:59 PM

Brandy J. Klapatch
Family Court Specialist

****SUMMARY OF CASE HISTORY ATTACHED****

IT IS SO ORDERED.

HONORABLE

CASE HISTORY SUMMARIZED

April 1, 2024:
Summons and Complaint for Paternity filed with the Court.

April 11, 2024:
Order to Appear for Facilitative Information Gathering Conference. To be held on April 26, 2024. Parties were scheduled separately due to Personal Protection Order (23-005907-PP).

April 11, 2024:
Plaintiff filed a Motion, Affidavit, and/or Order to Show Cause for Custodial Interference against the Defendant. Plaintiff reported/alleged the parties had verbally agreed to a Week On/Week Off parenting schedule; had been exercising said schedule since the separation reported to have occurred on December 15, 2023; exchanges facilitated by/through Lori Watson and on March 26, 2024 was denied parenting time, informed by Lori Watson that the child was with the Defendant/Custodial parent and he would need to go through the Courts for further parenting time. Plaintiff referenced Michigan Penal Code 750.350a as Legal Basis for Relief and requested the child be immediately returned to his care; modify Custody/Parenting Time Orders to "50/50"; find Defendant in contempt with sanctions or charges of kidnapping and prohibit Lori Watson from being the minor child's daily caregiver. In conclusion Plaintiff stated his home "provides a safe and consistent environment". The Plaintiff's Motion was Denied. Order entered on April 12, 2024.

April 11, 2024:
Plaintiff filed a Motion regarding Custody. Plaintiff addressed the Best Interest Factors reporting a strong bond with the child; alleged the Defendant showed "zero willingness to be civil"; was violating the verbal parenting agreement by withholding the child from him, stated the allegations of DV against him by the Defendant were false and informed of an incident that took place on November 30, 2023 in which he reports the Defendant and her father threatened him for over an hour while the child was in his arms.

April 23, 2024:
Defendant/Mother filed an Answer to Plaintiff's Motion regarding Custody.
Defendant/Mother disagreed with the Plaintiff's allegations; requested the Plaintiff's mental health be evaluated; show proof he has a safe and suitable home and proof of child care arrangements prior to any parenting time determinations being made.

April 26, 2024: Facilitative Information Gathering (FIG) Conference held as Noticed to the parties.
Defendant/Mother expressed concerns regarding "erratic" behaviors exhibited by the Plaintiff and referenced his past history of drug use. Mother requested Sole Legal Custody. Plaintiff requested Joint Legal Custody.
Order after FIG was prepared.

April 29, 2024:
Ex Parte Order following Facilitative Information Gathering Conference was entered.
Order granted Joint Legal and Joint Physical Custody of minor child, LINCOLN (age 17 months).
Parenting Time on alternating weeks with exchanges on Friday at 5:30pm at Muskegon Police Department.
Plaintiff to not ingest cocaine or any other non-prescribed mind-altering substances twelve (12) hours prior to and/or during parenting times.

Parties to Communicate via co-parenting application, "AppClose". Plaintiff to send invite. Defendant/Mother to accept invitation.

Holiday parenting times to be by agreement. If unable to agree an alternating Holiday Schedule was provided.

Child Support obligations were calculated with the application of each party exercising 182.5 overnights each year. The Guidelines recommended the Mother pay \$162.00 monthly with the application of Mother earning \$5,372.25 gross monthly and Plaintiff earning \$3,480.00 gross monthly.

May 13, 2024:

Attorney Jennifer Barnes filed an Appearance on behalf of Defendant/Mother.

Attorney Barnes filed Defendant's Objection to Ex Parte Order for Custody, Parenting Time and Child Support following Facilitative Information Gathering Conference on behalf of Mother and Notice of Hearing to be held on May 24, 2024 at 11:30am.

Defendant/Mother objected to all matters (Custody, Parenting Time and Child Support).

May 23, 2024:

Plaintiff filed what was titled to be a "Response to Objections" and included what was titled **"Plaintiff's Consolidated Motions and Rebuttals"** to include the following:

Motion for Sanctions alleging Defendant was "engaging in frivolous litigation and unnecessarily escalating legal costs".

Request for Relief in the form of Court Costs, Travel Expenses, Filing and Service Costs referencing MCR 1.109 (E) (6).

Motion for Summary Judgment indicating Defendant failed to present "substantial evidence supporting her objections" and referenced MCR 2.116 (C)(10).

Motion for Contempt for non-payment of Child Support and "Defamation" of Plaintiff's Character regarding "surveillance and misuse of funds and cocaine use" referencing MCL 600.1701.

Motion for Discovery requesting "Defendant's Medical Records"; "Photographic Evidence"; "Supporting Evidence and Third-Party Testimonies" referencing MCR 2.302 (A).

Motion for Make-Up Parenting Time referencing MCL 722.27a.

Plaintiff requested "sanctions, summary judgment, contempt, discovery and make-up parenting time" to "address the undue burdens placed on Plaintiff and to uphold the integrity of the judicial process".

May 23, 2024:

Plaintiff filed Motion regarding Parenting Time.

Plaintiff requested 21 days of Make Up Parenting Time for denied parenting times from March 26, 2024 to May 3, 2024.

May 28, 2024:

Witness List and Expert Witness List was filed by Attorney Barnes on behalf of Defendant.

May 30, 2024:

Notice for Non-Jury Trial, Whole day, to be held on Wednesday, July 17, 2024 at 9:00am.

June 6, 2024:

Recommendation prepared by Family Court Specialist dismissing the Plaintiff/Father's Motion regarding Parenting Time requesting Make-Up Parenting Time finding there to be no Court Orders entered for specific parenting time prior to May 3, 2024. No Objections to the Recommendation were filed.

Order Dismissing Motion entered on July 6, 2024.

June 27, 2024:

Plaintiff filed a Motion to Quash Subpoena.

Requested the Subpoenas issued to IndiGrow Weed Dispensary Muskegon, Shady Oak Trailer Park and Kids Fun Learning Centerd be quashed for the grounds of being “overly broad and unduly burdensome”; “irrelevant to the case” and “violate privacy rights” referencing the following, MCR 2.302(G), MCR 2.305(A)(4), and People v. DiGiovanni, 302 Mich. App. 576(2013) in support of his Motion.

It is noted the Order accompanying Motion prepared by Plaintiff was not signed. Circuit Court Records indicated the Order was filed without requesting a Hearing.

July 10, 2024:

Custody, Parenting Time and Child Support Trial Brief filed by Attorney Barnes on behalf of Defendant/Mother.

July 10, 2024:

Brief for Trial filed by Plaintiff.

Plaintiff stated an Established Custodial Environment existed with him informing he provided Daily Care and Stability (feeding, clothing, housing; school attendance, extracurricular participation, consistent daycare); Emotional and Psychological support (safe, loving, conflict free environment) and Continuity and Routine (regular bedtimes, meal times, reading, brushing teeth, potty training, educational and recreational engagement).

Plaintiff proceeded to address the Best Interest Factors and requested Primary Custody concluding with, the Plaintiff “has established a stable and nurturing custodial environment for Lincoln. The Defendant’s false accusations, harassment, and disruptive behavior, coupled with her attorneys unprofessional actions, have caused emotional distress, PTSD, and instability”.

July 16, 2024:

Plaintiff filed a Motion to Impeach Witness.

Witness being Avanti Lopez for the grounds of “Lack of Credibility” and “Bias and Hostility” referencing the following: Michigan Rules of Evidence 609(a), Michigan Rules of Evidence 608(b) and MCL 768.27a(1).

July 16, 2024:

Plaintiff filed Motion to Dismiss Objections in Custody Case and provided his “rebuttals” to the Defendant’s Objection as it relates to the Best Interest Factors.

July 16, 2024:

Plaintiff filed Motion to Modify Parenting Time and Drop-Off Arrangements.

Requested exchanges take place at a neutral location and for the Defendant’s father to be prohibited from being present reporting harassment and being “verbally assaulted” by said person (Defendant’s father).

July 16, 2024:

Plaintiff filed Motion to Quash Subpoenas and for Protective Order in Custody Case for the grounds of “Improper Issuance of Subpoenas” and “Privacy and Confidentiality Concerns” referencing Relevant Michigan Court Rules and Federal Rules of Civil Procedure, FRCP 26(b)(1), 45(d)(3)(A) requesting subpoenas issued by Defendant be quashed, Defendant be prohibited from issuing any further subpoenas and Sanctions for “misuse of the discovery process”.

July 16, 2024:

Plaintiff filed Motion for Protective Order and Sanctions in Custody Case for the grounds of “Continuous Harassment and Intrusive Actions” and “Misuse of Professional Resources” requesting a protective order, sanctions against Defendant and to restrict the Defendant’s ability to issue subpoenas without prior court approval.

July 16, 2024:

Plaintiff filed a Motion for Contempt of Court for the grounds of “Failure to Pay Child Support” and “Refusal to Co-Parent” requesting the Defendant be found in contempt, issue sanctions for her “willful disobedience of court orders”, pay any child support arrears immediately and require Defendant to engage in co-parenting through AppClose.

July 17, 2024:

Non-Jury Trial held regarding the issues of Custody, Parenting Time and Child Support.

Court heard Testimony and Arguments. Court reviewed all admitted exhibits.

Court prepared a Judgment finding the following:

*Temporary Order regarding the issues was entered on April 29, 2024 (Ex Parte following FIG).

*Ex Parte Order for Custody, Parenting Time and Child Support entered on April 29, 2024 was Dismissed.

*This Judgment is the initial Order regarding the issues of Custody and Parenting Time.

*Plaintiff's six (6) Motions filed on July 16, 2024, the day before Trial, Denied “as they are frivolous Motions for which Plaintiff has already been instructed by this Court that if he files an additional frivolous Motion, he will incur sanctions” and “the filings of these Motions was done as harassment to Defendant and to the Court, along with an abuse of the Court system”.

*Established Custodial Environment exists with both parties.

*Best Interest Factors were evaluated and following was found:

Factor a. Equal between parties

Factor b. Equal between parties

Factor c. Plaintiff's employment terminated by employer (IndiGrow).

Defendant has maintained employment with same employer (Kent County Prosecutor's Office) for nine years.

Favors Defendant/Mother

Factor d. Plaintiff has eviction pending regarding living arrangement.

Defendant purchased home in 2020 and is current on mortgage.

Favors Defendant/Mother

Factor e. Plaintiff resides by himself.

Defendant resides with minor child, her other child, her brother and her niece.

Favors Defendant/Mother

Factor f. Plaintiff's prior criminal record was reviewed. Communications via AppClose between parties was reviewed finding communications by Plaintiff to be badgering and harassment inflicted on Defendant.

Favors Defendant/Mother

Factor g. Plaintiff diagnosed with ADD and self-medicates with Marijuana (legal) however questions if the Marijuana laws are followed.

Defendant has no history of mental or physical health concerns.

Slightly Favors Defendant/Mother

Factor h. Plaintiff chose different childcare.

Defendant maintains maternal grandmother as care provider.

Favors Defendant/Mother

Factor i. Not applicable. Child not of sufficient age to express preference.

Factor j. Plaintiff gets frustrated when he does not get the answer he wants as evidenced by his frivolous Motions.

Court does not appreciate the Mother withholding the child.

Defendant states she encourages a close parent-child relationship.

Favors Defendant/Mother

Factor k. PPO (23-005907-PP)

Favors Defendant/Mother

Factor l. Concerns found to be a combination of all testimony and evidence.

Plaintiff's inability to see how his behavior impacts the child.

Plaintiff's inability to see how his behavior impacts the Defendant.

Plaintiff's behavior at work and complaints filed by five (5) co-workers leading to his termination.

The Proposed Judgment granted the following:

Sole Legal and Sole Physical to Defendant/Mother finding "no foreseeable way that these parties can cooperate together to address legal custody concerns" and "by clear and convincing evidence".

Parties to communicate via AppClose.

Plaintiff/Father granted Parenting Time on alternating weekends from Friday at 5:30pm until Sunday at 5:30pm during School Years beginning September 1st of each year and alternating weekend from Friday at 5:30pm until Tuesday at 5:30pm during Summers beginning the first alternating weekend after school discharges for the summer and continuing until September 1st.

Exchanges at City of Muskegon Police Department.

Both parties may utilize third-parties to conduct parenting time exchanges. There shall be no communication during parenting time exchanges.

Alternating Holiday Scheduled was provided.

Defendant's Objection to Ex Parte Order for Custody, Parenting Time and Child Support following Facilitative Information Gathering Conference Granted. Child Support to be recalculated.

July 30, 2024:

Plaintiff filed Objection to prepared/proposed Judgment.

Plaintiff objected to the finding that his Motions filed on July 16, 2024 were frivolous and referenced the following: MCL 722.27a, MCL 722.23(k), MCL 722.23(l), MCL 722.27(1)(c), MCL 722.27 and MCL 722.23(f) providing his oppositions to the Courts findings and included several pages (13-177) of what he believed to be documented evidence in support of his objection.

July 31, 2024:

The Court found the filing to be concerning as it contained personal information regarding the child that should not be in a public file and the documentation should have been introduced during Court proceedings, not attached to pleadings. It appeared the Plaintiff was continuing to argue his case.

An Order was entered. The Court found the Plaintiff did not follow the Courts Rule under MCR 2.602(B)(3) and pages 13-177 were to be returned to Plaintiff under MCR 2.114.

August 16, 2024:

Plaintiff filed a Motion for Reconsideration of Custody and Parenting Time.

In the Motion, Plaintiff questioned "Why Am I, as the Plaintiff, Being Treated Like aCriminal?" and reiterated his position for Joint Custody with equal Parenting Time.

Plaintiff acknowledged his filing was one day late and still requested reconsideration.

August 23, 2024:

Final Order entered regarding Custody & Parenting Time & Child Support following Custody Hearing.

All of Plaintiff's Motions Denied.

Defendant Granted Sole Legal and Sole Physical Custody of minor child, LINCOLN.

Plaintiff Granted Parenting Time:

During School Year: Beginning September 1st each year- alternating weekends from Friday at 5:30pm until Sunday at 5:30pm.

During Summers: Beginning first alternating weekend after school dismisses for Summer-alternating weekends from Friday at 5:30pm until Tuesday at 5:30pm.

Exchanges at City of Muskegon Police Department.

Both parties may utilize assistance of third party for parenting exchanges.

No communication during parenting time exchanges.

Alternating Holiday Schedule was provided.

Child Support obligations in the amount of \$332.00 monthly were calculated with the application of Plaintiff/Father exercising 78 overnights each year effective July 17, 2024 the date of the Trial.

August 27, 2024:

Plaintiff reported New employment with Shape Corp via Change in Personal Information Form and New insurance to include Medical, Dental and Vision for a cost of \$95.47/week.

September 18, 2024:

Order entered regarding Plaintiff's Motion for Reconsideration.

Plaintiff's Motion for Reconsideration was Denied.

February 14, 2025:

Plaintiff filed Motion re: Parenting Time requesting Joint Custody and equal parenting time (50/50) be restored and for child support to be recalculated with application of said modifications.

Recommendation Dismissing Motion was prepared on March 26, 2025 finding no change in circumstances since entry of last Order.